

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mic Braun	Team: Squad #05	CCRB Case #: 202306300	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☒ Injury
Incident Date(s) Friday, 07/07/2023 8:50 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/7/2025	Precinct: 40
Date/Time CV Reported Mon, 07/10/2023 3:07 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/10/2023 3:07 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Brian Query	00000	937315	PSA 7
2. PO Hector Rodriguez	18610	964256	042 PCT
3. PO Sheikh Aktaruzzaman	26939	966929	042 PCT
4. PO Michael Reale	02181	954265	HBXQ RT
5. PO Dwight Wanzer	20981	963322	HBXQ RT
6. PO Imran Iqbal	23791	975554	PSA 7
7. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Estiven Mena	15011	975659	PSA 7
2. PO Ashley Corsino	30295	975416	PSA 7
3. PO Jamel Jeffrey	02964	974210	040 PCT
4. LT Lauren Diaz	00000	941658	OPS DIV
5. SGT David Perez	05283	937267	042 PCT
6. SGT Joseph Laipert	00532	947148	PSA 7
7. PO Jonuel Firpo	08685	974110	PSA 7
8. PO Christopher Pena	18174	968705	042 PCT
9. PO Mamnun Jaigirdar	19927	971489	PSA 7
10. PO Marvin Torchon	25673	967365	042 PCT
11. PO Bolivar Vasquez	11886	967712	PSA 7

Officer(s)	Allegation	Investigator Recommendation
A . LT Brian Query	Abuse: Lieutenant Brian Query stopped § 87(2)(b)	A . Substantiated
B . PO Hector Rodriguez	Force: Police Officer Hector Rodriguez used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . LT Brian Query	Force: Lieutenant Brian Query used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Hector Rodriguez	Force: Police Officer Hector Rodriguez used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Dwight Wanzer	Force: Police Officer Dwight Wanzer used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Sheikh Aktaruzzaman	Force: Police Officer Sheikh Aktaruzzaman used physical force against § 87(2)(b)	F . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
G . PO Michael Reale	Force: Police Officer Michael Reale used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . Officers	Force: Officers used physical force against § 87(2)(b)	H . Unfounded
I . PO Imran Iqbal	Abuse: Police Officer Imran Iqbal threatened § 87(2)(b) with the use of force.	I . Within NYPD Guidelines
J . PO Sheikh Aktaruzzaman	Off. Language: Police Officer Sheikh Aktaruzzaman made remarks to § 87(2)(b) based upon race.	J . Unfounded
K . PO Sheikh Aktaruzzaman	Discourtesy: Police Officer Sheikh Aktaruzzaman spoke discourteously to § 87(2)(b)	K . Unfounded
L . LT Brian Query	Abuse: Lieutenant Brian Query issued an unlawful summons to § 87(2)(b)	L . Substantiated

Case Summary

On July 10, 2023, § 87(2)(b) filed this complaint over the phone with the CCRB.

On July 7, 2023, at approximately 8:50 p.m., § 87(2)(b) was leaving the § 87(2)(b) in the Bronx when he was stopped by Lt. Brian Query of PSA 7 (**Allegation A: Abuse of Authority, substantiated**). PO Hector Rodriguez and PO Sheikh Aktaruzzaman of the 42nd Precinct, PO Dwight Wanzer and PO Michael Reale of the Housing Bronx Queens Response Team, and PO Imran Iqbal of PSA 7 were all involved in this incident. PO Rodriguez and Lt. Query shoved § 87(2)(b) toward a fence (**Allegations B-C: Force, within NYPD guidelines**). PO Rodriguez, PO Wanzer, PO Aktaruzzaman, and PO Reale fought with § 87(2)(b) (**Allegations D-G: Force, within NYPD guidelines**). Officers allegedly punched § 87(2)(b) in the back and face (**Allegation H: Force, unfounded**). PO Iqbal pointed his Taser at § 87(2)(b) torso (**Allegation I: Abuse of Authority, within NYPD guidelines**). PO Aktaruzzaman allegedly called § 87(2)(b) a “black fat stupid nigger” (**Allegation J: Offensive Language, unfounded; Allegation K: Discourtesy, unfounded**). Lt. Query directed PO Mena to issue two disorderly conduct summonses to § 87(2)(b) (BR 01) (**Allegation L: Abuse of Authority, substantiated**).

The investigation obtained BWC footage from all officers (BR 02-10, summarized in BR 11-13) and cellphone footage from witnesses (BR 14, summarized in BR 15), as well as § 87(2)(b) CCTV footage (BR 16-17) which did not capture this incident. All references to video refer to the timestamp in the video player and not to the on-screen timestamp.

The investigation was delayed by an initial wait for redacted BWC footage and a second request for additional footage.

Allegation (A) Abuse of Authority: Lieutenant Brian Query stopped § 87(2)(b)
Allegation (L) Abuse of Authority: Lieutenant Brian Query issued an unlawful summons to § 87(2)(b)

It is undisputed that a large memorial event was taking place on the basketball courts of the § 87(2)(b)

§ 87(2)(b) recounted in his interview (BR 18) that he had not taken part in the memorial event. He left his building in the complex and walked down a pathway toward the street so he could go to a deli. He saw officers clearing a path from the basketball court and telling people to leave and go home. § 87(2)(b) stepped to the side to let them go by. PO Rodriguez told him, “Turn around, you can’t go this way.” He did not say why. § 87(2)(b) explained that he lived at the complex. PO Rodriguez raised his voice and said, “Keep going.” § 87(2)(b) tried to explain himself. An officer said some sort of numerical code in reference to § 87(2)(b) which he understood to mean that the officers should arrest him. As explained in the allegations below, § 87(2)(b) was then handcuffed. At the stationhouse, PO Mena gave § 87(2)(b) two summonses for disorderly conduct. PO Mena did not know what had happened during the incident and told § 87(2)(b) that he was just doing his job.

PO Rodriguez’s BWC footage (BR 06, 06:38) captures PO Rodriguez walking toward § 87(2)(b). There are numerous other people milling about the walkway. PO Rodriguez says, “Let’s go,” and tells § 87(2)(b) to move the other way, pointing down the walkway. § 87(2)(b) says that he is going in the opposite direction. PO Rodriguez repeatedly says that he does not care. He puts his hands on both sides of § 87(2)(b) torso and grabs his arm. § 87(2)(b) pushes PO Rodriguez’s arms away and tells him to calm down. PO Rodriguez says something unclear in

response, and PO Rodriguez pushes § 87(2)(b) back slightly by the arms. At 06:49, merely ten seconds after PO Rodriguez has begun interacting with § 87(2)(b) Lt. Query walks over, grabs § 87(2)(b) from behind, and says “Cuff him, cuff him.” Multiple officers grab § 87(2)(b) to begin cuffing him.

PO Corsino’s BWC footage (BR 07, at 15:20) captures a passing individual commenting on the officers handcuffing § 87(2)(b). Another individual standing about ten to fifteen feet away repeatedly says, “There’s way more than enough of y’all,” “Y’all doing too much,” and “He not doing nothing,” and begins filming. A flow of people passes by on the walkway. At 15:48, four individuals stop and watch the officers handcuffing § 87(2)(b). Some individuals complain that officers are harassing and attacking § 87(2)(b) and they tell § 87(2)(b) to comply. At 16:28, there are about ten individuals watching this interaction. § 87(2)(b) is already in handcuffs at this point.

Lt. Query recounted in his interview (BR 19) that he had given the attendees of the event many warnings to disperse. He saw PO Rodriguez struggling with § 87(2)(b) and attempting to stop him on a congested pathway. Lt. Query did not know what had transpired and only observed the interaction for about two or three seconds before going to assist. PO Rodriguez was holding his hands out and trying to guide § 87(2)(b) hands, which Lt. Query interpreted as an attempt to take him into custody. He did not hear any of the verbal exchange between PO Rodriguez and § 87(2)(b) before he looked over at them. Based on his observations, Lt. Query concluded that § 87(2)(b) was resisting arrest and defying orders to leave. § 87(2)(b) alarmed 10-15 other people, who came and stood a couple feet away and began asking officers what they were doing. Lt. Query denied that he instructed PO Rodriguez to take § 87(2)(b) into custody. He did not recall if he directed any officers to handcuff § 87(2)(b). After reviewing the BWC footage, Lt. Query recounted that he told the surrounding officers to help PO Rodriguez because PO Rodriguez had his hands on § 87(2)(b) and was already fully engaged in arresting him. Lt. Query denied that he later told any officer what type of summons to issue § 87(2)(b). He denied directing officers to issue any summonses, and he was not aware of any directive to issue summonses to members of the crowd at the event. Lt. Query was unsure for what charge § 87(2)(b) was issued a summons. Upon his return to the stationhouse at the end of the night, Lt. Query found out about the summons, though he did not recall with whom he spoke about it.

PO Rodriguez’s statement (BR 20) was consistent with the BWC footage, though he did not recall if he grabbed § 87(2)(b) arms. He recounted that Lt. Query wanted the officers to have the crowd exit the complex in one specific direction. PO Rodriguez did not know why the premises were being cleared. There was no overall directive of what to do with people who did not cooperate. PO Rodriguez had not been attempting to stop or detain § 87(2)(b) and he had not intended on handcuffing § 87(2)(b) prior to Lt. Query’s order to do so. Lt. Query did not say why he gave an order to put § 87(2)(b) in custody. Initially, PO Rodriguez stated in his interview that he did not observe § 87(2)(b) committing any crimes or violations. PO Rodriguez later stated that § 87(2)(b) mere refusal to comply with his order to go in the opposite direction could have constituted disorderly conduct.

PO Mena recounted the incident similarly to PO Rodriguez (BR 21), with the addition that Lt. Query instructed officers to arrest people if they did not follow orders, though Lt. Query did not specify the charge for which such people would be arrested. PO Mena observed § 87(2)(b) arguing with another officer, but he was too far away to hear what they were saying. PO Mena did not personally see § 87(2)(b) committing any crimes or violations. At the time, he did not know why § 87(2)(b) was being handcuffed. At the stationhouse, Lt. Query told PO Mena that § 87(2)(b) arrest was assigned to him. Lt. Query told him to issue a disorderly conduct summons

for failure to disperse and a disorderly conduct summons for blocking pedestrian walkway and traffic. Lt. Query explained to PO Mena that § 87(2)(b) was told to disperse and refused to do so, so he was placed in handcuffs. He did not explain in what way § 87(2)(b) was blocking pedestrian traffic. PO Mena issued these summonses solely because Lt. Query directed him to do so.

It is apparent from the video footage and officer statements that PO Rodriguez did not suspect § 87(2)(b) of criminality and was not attempting to take him into custody when Lt. Query suddenly ordered officers to handcuff him. As a result, the investigation concluded that the stop began as a direct result of Lt. Query's order, and thus that he should be the subject of the stop allegation. Similarly, despite Lt. Query's denials, the investigation credited PO Mena's account that Lt. Query personally directed him to issue the summonses and told him the charges to cite.

A stop may be conducted only when an officer has an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or Penal Law misdemeanor. The officer must have a particularized and objective basis for suspecting the person stopped of the criminal conduct. The officer must be able to articulate specific facts establishing justification for the stop; hunches or gut feelings are not sufficient. Patrol Guide Procedure 212-11 (BR 22).

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof: (1) He engages in fighting or in violent, tumultuous, or threatening behavior; or (2) He makes unreasonable noise; or (3) In a public place, he uses abusive or obscene language or makes an obscene gesture; or (4) Without lawful authority, he disturbs any lawful assembly or meeting of persons; or (5) He obstructs vehicular or pedestrian traffic; or (6) He congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse; or (7) He creates a hazardous or physically offensive condition by any act which serves no legitimate purpose. NY CLS Penal Law §240.20 (BR 23). Critical to a charge of disorderly conduct is a finding that defendant's disruptive statements and behavior were of a public rather than an individual dimension. The risk of public disorder does not have to be realized but the circumstances must be such that the defendant's intent to create such a threat (or reckless disregard thereof) can be readily inferred. In determining whether such an intent can be inferred, courts use a contextual analysis that turns on the consideration of many factors, including the time and place of the episode under scrutiny; the nature and character of the conduct; the number of other people in the vicinity; whether they are drawn to the disturbance and, if so, the nature and number of those attracted; and any other relevant circumstances. *People v. Baker*, 20 N.Y.3d 354 (2013) (BR 24).

§ 87(2)(g)
First, the seconds-long encounter between PO Rodriguez and § 87(2)(b) amounted to an individual argument, § 87(2)(g)

In addition, Lt. Query admitted that he was unable to hear PO Rodriguez's statements to § 87(2)(b) before getting involved, and he issued orders to handcuff § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

§ 87(2)(g)

§ 87(2)(g)

Though § 87(2)(b) subsequently resisted the officers who handcuffed him (as discussed below), this interaction lasted a mere minute and was self-contained. While some individuals did stop to watch this interaction, the incident took place at a location which already had massive crowds. § 87(2)(g)

It is therefore recommended that **Allegation L** be closed as substantiated.

Allegation (B) Force: Police Officer Hector Rodriguez used physical force against § 87(2)(b)

Allegation (C) Force: Lieutenant Brian Querv used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Hector Rodriguez used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer Dwight Wanzer used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Sheikh Aktaruzzaman used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer Michael Reale used physical force against § 87(2)(b)

Allegation (H) Force: Officers used physical force against § 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Imran Iqbal threatened § 87(2)(b) with the use of force.

Allegation (J) Offensive Language: Police Officer Sheikh Aktaruzzaman made remarks to § 87(2)(b) based upon race.

Allegation (K) Discourtesy: Police Officer Sheikh Aktaruzzaman spoke discourteously to § 87(2)(b)

PO Aktaruzzaman's BWC footage (**BR 08, at 06:46**) captures him grabbing § 87(2)(b) left wrist. The officers bring him to a gate. PO Aktaruzzaman, PO Rodriguez, PO Wanzer, and PO Reale are pulling on § 87(2)(b) arms to bring them behind his back, and § 87(2)(b) is struggling against them and pulling away. It takes approximately 60 seconds to successfully close the handcuffs on § 87(2)(b). At no point do officers use racial language.

While this is happening, PO Reale's BWC footage (**BR 09, at 04:56**) captures PO Iqbal pointing a Taser at § 87(2)(b) from about three feet away. At 05:09, PO Iqbal brings the unloaded Taser closer to § 87(2)(b) torso while § 87(2)(b) is bent forward over the gate. At 05:17, § 87(2)(b) says, "You guys are pulling my hair and all that." A few seconds later, officers tell him to relax, and he replies, "You relax, bro. Then stop grabbing my head, bro, what's wrong with you?" At the same time, Lt. Diaz's BWC footage (**BR 10, at 09:27**) captures PO Reale's palm grasping § 87(2)(b) head. No officers appear to be pulling § 87(2)(b) hair or punching him during these videos.

§ 87(2)(b) statement was somewhat inconsistent with the footage. He recounted that three or four officers turned him around, grabbed his left arm and shoulder, and held onto him. He was generally unable to attribute specific actions to specific officers because his back was turned the entire time. PO Aktaruzzaman pushed him down so that he was bent over the gate and the bars pressed into his stomach. § 87(2)(b) held onto the gate. Officers pushed both of his arms behind

him past the middle of his back, causing his shoulder to dislocate. He did not move his body or resist while officers attempted to handcuff him. While he was still bent over, multiple officers intentionally pulled his hair braids for two or three seconds to get him to let go of the gate. At the same time, three officers punched § 87(2)(b) four or five times on both sides of his torso. This caused a bruise on the left and right sides of his ribs and back. He initially alleged that multiple officers told him, “Let go of the gate, nigger,” and that an officer said, “You black fat stupid nigger.” He later clarified that only PO Aktaruzzaman called him “nigger” while trying to get his hands off the gate. Officers behind § 87(2)(b) intentionally punched his right cheek and his neck one time, but it did not cause any injuries. § 87(2)(b) did not respond to the racial slurs. An officer came up in front of § 87(2)(b) and drew a Taser. He pointed it about two inches away from § 87(2)(b) stomach and said, “If you don’t let go of that gate, I’m gonna shoot you with the stun gun.” A blueish white light came from the taser. § 87(2)(b) let go of the gate and the officers handcuffed him. In addition to the dislocated shoulder and the bruising on his torso and back, § 87(2)(b) also sustained a sprained left wrist. § 87(2)(b) could not specify which officers performed which alleged actions because his back was turned, though he felt multiple things happening at once. § 87(2)(b) requested medical attention at the stationhouse, and an EMT responded and told him that he did not require medical attention. § 87(2)(b) maintained to the investigation that the EMT provided insufficient medical attention as she did not ask about his injuries. He went to § 87(2)(b) Hospital on his own the next day, where he had X-rays and was given a painkiller.

The investigation later attempted to follow up with § 87(2)(b) for additional detail regarding the force allegations, and to arrange a way for § 87(2)(b) to sign HIPAA forms and provide photos of his injuries. Although § 87(2)(b) began answering questions, he ultimately became uncooperative, saying he had no further interest in pursuing an investigation, and hung up the phone. As a result, the investigation could not obtain his medical records.

The video evidence makes clear that no officers made the alleged racially offensive and discourteous remarks during this incident. The video footage also shows that officers did not punch § 87(2)(b). While the footage captures PO Reale grabbing § 87(2)(b) head to gain control of him, at no point does any officer pull § 87(2)(b) braids.

It was not necessary to interview officers to reach dispositions for these allegations.

Officers may use force when it is reasonable to place a person in custody, to ensure the safety of themselves, and to protect other officers. Any use of force must be reasonable under the circumstances and not excessive. Patrol Guide Procedure 221-01 (BR 25). A Taser should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons actually present. Active resistance includes physically evasive movements to defeat an officer’s attempt at control, including bracing, tensing, punching, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. Officers are advised to point a Taser at a resisting civilian to attempt to achieve voluntary compliance. Patrol Guide Procedure 221-08 (BR 26).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations B-G** be closed as **within NYPD guidelines**. § 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **within NYPD guidelines**.

The BWC footage does not capture any officers punching § 87(2)(b). It is therefore recommended that **Allegation H** be closed as **unfounded**. The BWC footage does not capture PO Aktaruzzaman making the alleged offensive and discourteous remarks. It is therefore recommended that **Allegations J-K** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- Lt. Query has been a member of the NYPD for 19 years and has been a subject in 13 CCRB complaints and 33 allegations, of which two were substantiated:
 - 201706222 involved a substantiated allegation of refusal to obtain medical treatment against Lt. Query. The Board recommended Command Discipline B, but the NYPD closed the case administratively and did not impose discipline.
 - 202101390 involved a substantiated allegation of failure to provide RTKA Card against Lt. Query. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
 - 202303962, § 87(2)(g), and 202309250 remain under investigation.
 - § 87(2)(g)
- PO Rodriguez has been a member of the NYPD for six years and has been a subject in three CCRB complaints and 11 allegations, none of which were substantiated. One case remains under investigation. § 87(2)(g)
- PO Wanzer has been a member of the NYPD for seven years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Aktaruzzaman has been a member of the NYPD for five years and has been a subject in five CCRB complaints and 15 allegations, of which four were substantiated:
 - 202006168 involved a substantiated allegation of threat of force against PO Aktaruzzaman. The Board recommended Command Discipline B and the NYPD has not yet imposed discipline.
 - 202300229 involved substantiated allegations of stop, failure to provide RTKA card, improper use of BWC against PO Aktaruzzaman. The Board recommended Command Discipline B and the NYPD has not yet imposed discipline.
 - 202302333 remains under investigation.
 - § 87(2)(g)
- PO Reale has been a member of the NYPD for 11 years and has been a subject in four CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)
- PO Iqbal has been a member of the NYPD for one year and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of December 15, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**BR 28**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 5

Investigator:	<u>Mic Braun</u>	<u>Inv. Mic Braun</u>	<u>July 9, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>July 10, 2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date